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No. 26-1252

IN THE
UNITED STATES COURT OF APPEALS
FOR THE FOURTH CIRCUIT

IN THE
United States Court of Appeals for the Fourth Circuit

NETCHOICE,
NETCHOICE,
Plaintiff-Appellee,
Plaintiff-Appellee,
v.
v.
JAY JONES, IN HIS OFFICIAL CAPACITY AS ATTORNEY GENERAL OF THE COMMONWEALTH OF VIRGINIA,
JAY JONES, IN HIS OFFICIAL CAPACITY AS ATTORNEY GENERAL OF THE COMMONWEALTH OF VIRGINIA,
Defendant-Appellant.
Defendant-Appellant.

On Appeal from the United States District Court for the Eastern District of Virginia,
On Appeal from the United States District Court
No. 1:25-cv-02067
For the Eastern District of Virginia, No. 1:25-cv-02067

OPENING BRIEF OF APPELLANT
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April 15, 2026

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INTRODUCTION

Attempting to squeeze a novel case into distinguishable precedent, the district court lost sight of first principles and enjoined a carefully and narrowly tailored law that imposes a minor temporary burden on speech. Virginia passed a law requiring social media companies serving Virginia's minors under 16 to limit their use to one hour per day *unless* a parent changes the setting. So, the burden on the social media company is to create a parental control with a one-hour default, or if it already has parental controls, change the default from unlimited to one hour (and, if it chooses, geofencing so that it operates only in Virginia). NetChoice claims its members already have parental controls, so it is just a matter of changing the default setting—not much burden at all. The burden on the underage user is to get mom or dad or a guardian to change the one-hour default *if* the minor wants to use the platform more than an hour a day. The burden on an adult user is to engage in age verification—a burden the Supreme Court already has determined does not warrant strict scrutiny. These minor burdens should not render a law unconstitutional—particularly when the court found Virginia had established a *compelling* state interest.

Consistent with several other Circuits' recent decisions, this Court should vacate the preliminary injunction and remand.

ISSUES PRESENTED

1. Did the district court err in concluding that NetChoice was likely to establish that Virginia's Parental Control Provision violates the First Amendment?

2. Did the district court err in weighing the public interest, the balance of equities, and irreparable harm against Virginia?

JURISDICTIONAL STATEMENT

NetChoice invoked the district court's jurisdiction under 28 U.S.C. § 1331. J.A. 13. On February 27, 2026, the district court entered a preliminary injunction, J.A. 320, and the Commonwealth noticed an appeal from that order on March 3, 2026, J.A. 321. This Court has jurisdiction under 28 U.S.C. § 1292(a)(1).

STATEMENT

A. Social media platforms' addictive features create a youth public health crisis

Social media platforms' features make social media addictive to children. J.A. 126. Their complex algorithms customize each user's feed, and then employ autoplay and infinite scrolling to ensure that users

Consistent with several other Circuits' recent decisions, this Court should vacate the preliminary injunction and remand.

STATEMENT

A. Social media platforms' addictive features create a youth public health crisis

ISSUES PRESENTED

Social media platforms' features make social media addictive to children. J.A. 126. Their complex algorithms customize each user's feed, and then employ autoplay and infinite scrolling to ensure that users never reach the end of those feeds. J.A. 127. And they send out push notifications and other forms of public validation, such as likes and shares, that keep users coming back for more. J.A. 127, 133.

1. Did the district court err in concluding that NetChoice was likely to establish that Virginia's Parental Control Provision violates the First Amendment?

2. Did the district court err in weighing the public interest, the balance of equities, and irreparable harm against Virginia?

[Paragraph omitted from this transcription.]

The impacts of this addiction are severe. Children who spend too much time on social media suffer from "loss of sleep," higher "obesity rates," impaired "cognitive function," and lower "academic performance." J.A. 174; *see also* J.A. 133.

[Brief pages 4-7 are omitted from this transcription. Statement Parts B through G.]

JURISDICTIONAL STATEMENT

NetChoice invoked the district court's jurisdiction under 28 U.S.C. § 1331. J.A. 13. On February 27, 2026, the district court entered a preliminary injunction, J.A. 320, and the Commonwealth noticed an appeal from that order on March 3, 2026, J.A. 321. This Court has jurisdiction under 28 U.S.C. § 1292(a)(1).

STANDARD OF REVIEW

The grant of a preliminary injunction is reviewed for abuse of discretion, but legal conclusions are reviewed "de novo." *Pierce v. N.C. State Bd. of Elections*, 97 F.4th 194, 210 (4th Cir. 2024).

STATEMENT

A. Social media platforms' addictive features create a youth public health crisis

Social media platforms' features make social media addictive to children. J.A. 126. Their complex algorithms customize each user's feed, and then employ autoplay and infinite scrolling to ensure that users

Moody v. NetChoice, LLC, 603 U.S. 707, 724–26 (2024), the district court declined to engage with the Parental Control Provision's full scope or to weigh its constitutional versus unconstitutional applications, instead focusing on select hypotheticals. In doing so, the court categorically enjoined Virginia's nuanced statute without parsing its many applications that impose only minimal and incidental burdens on speech. Had the district court conducted the proper analysis, it would have recognized that many (if not all) of the Provision's applications are constitutional, which is fatal to NetChoice's facial challenge.

Second, the district court misread the Parental Control Provision as discriminating based on content. But the Provision imposes a one-hour default on all social media platforms, no matter their content. The district court nonetheless deemed the Provision content based because it defines "social media platform" as not including websites that predominantly feature "content preselected by the provider and not generated by users" and offered as examples material those sites commonly publish, like "news, sports, entertainment, ecommerce, or interactive gaming content." Those examples are not content-based carveouts. Social media platforms are covered—and non-social media

The preliminary injunction paused those efforts, leaving the Commonwealth's children at the mercy of the platforms. Virginia and its children suffer irreparable harm each day that the Commonwealth is unable to enforce the Provision. That significant injury is not outweighed by the purported First Amendment harms that worry NetChoice. The Provision enables both children and social media platforms to convey whatever content they desire in the amount of time that parents permit their children to access the platform.

ARGUMENT

I. A preliminary injunction is an extraordinary remedy that places the burden on the plaintiff to show entitlement to the injunction

A preliminary injunction is an "extraordinary and drastic remedy," and is "never awarded as of right"—it is the "exception," not the "rule." *Munaf v. Geren*, 553 U.S. 674, 689–90 (2008) (cleaned up). Plaintiffs seeking a preliminary injunction must show that: (1) they are "likely to succeed on the merits," (2) they are "likely to suffer irreparable harm in the absence of preliminary relief," (3) "the balance of equities tips in [their] favor," and (4) an injunction is in the public interest. *Miranda v. Garland*, 34 F.4th 338, 358 (4th Cir. 2022).

A plaintiff's "failure to show any one of the relevant factors mandates denial of the preliminary injunction." *E.K. by & through Keeley v. Dep't of Def. Educ. Activity*, 807 F. Supp. 3d 517, 530 (E.D. Va. 2025) (cleaned up)). Because NetChoice is not likely to succeed on the merits and the balance of equities and public interest strongly favor the Commonwealth, this Court should vacate the district court's order.

II. The district court erred in concluding NetChoice was likely to succeed on the merits

A. The district court misapplied recent Supreme Court precedent in evaluating Plaintiffs' facial challenge

1. The district court applied the wrong standard

In a facial challenge under the First Amendment, the hurdle to obtain a preliminary injunction is particularly high. Unlike an as-applied challenge, where an individual seeks to prevent the law from being applied to *him*, in a facial challenge, the plaintiff attempts to invalidate the law wholesale and prevent it from applying to *anyone*. "Claims of facial invalidity often rest on speculation about the law's coverage and its future enforcement," *Moody v. NetChoice, LLC*, 603 U.S. 707, 723 (2024) (cleaned up), risking "premature interpretation of statutes on the basis of factually barebones records," *Wash. State Grange v. Wash. State Republican Party*, 552 U.S. 442, 450 (2008) (cleaned up).

(cleaned up) (rejecting "the speech of platforms and children. Again, this is a

default, modifiable time limit, not a ban. And any compliance costs

[NetChoice] might incur do not outweigh the State's interest in enforcing

its lawful regulation," *Uthmeier*, 2025 WL 3458571, at *9, particularly

given NetChoice's insistence that its members *already* offer "an array of

tools to guide and oversee their children's online access," J.A. 106–109.

III. The district court erred in concluding that the remaining preliminary injunction factors favored NetChoice

The Commonwealth, in contrast, suffers irreparable harm from the district court's injunction, because it is currently prevented from enforcing its bipartisan and unanimously adopted statute protecting its children. The Provision went into effect on January 1, 2026, but social media platforms declined to comply. Before the preliminary injunction, the Attorney General sent compliance letters to several platforms. *See* Va. Code § 59.1-584(A). Those enforcement efforts are now at a standstill. Preventing Virginia from enforcing its law "clearly inflicts irreparable harm on the [Commonwealth]." *Abbott v. Perez*, 585 U.S. 579, 602–03 & n.17 (2018). Indeed, "any time a State is enjoined by a court from effectuating statutes enacted by representatives of its people, it suffers a form of irreparable injury." *Trump v. CASA, Inc.*, 606 U.S. 831, 861 (2025) (quoting *Maryland v. King*, 567 U.S. 1301, 1303 (2012)

(Roberts, C.J., in chambers). And this is not just any law. The Provision is intended to serve one of the Commonwealth's most important responsibilities—protecting its children. *See Ginsberg v. New York*, 390 U.S. 629, 640 (1968) (recognizing the "transcendent interest in protecting the welfare of children" (cleaned up)).

CONCLUSION

The Parental Control Provision is needed to abate a skyrocketing youth mental health crisis. *See* J.A. 129–133. Virginia's interest "in applying the law to its residents and in being permitted to protect its children from health risks weigh heavily in [its] favor." *Uthmeier*, 2025 WL 3458571, at *10 (cleaned up). Platforms' concerns for their bottom lines do not outweigh Virginia's duty to protect its children or the public's interest in the prompt execution of a democratically enacted law protecting the Commonwealth's most vulnerable.

CONCLUSION

This Court should vacate the district court's preliminary injunction and remand.

REQUEST FOR ORAL ARGUMENT

The Attorney General of Virginia respectfully submits that oral argument would assist this Court in deciding the constitutional and other consequential questions that this case presents about Virginia's ability to empower parents to protect their children from an unprecedented youth public health crisis.

Respectfully submitted,

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April 15, 2026

CERTIFICATE OF COMPLIANCE

Pursuant to Federal Rule of Appellate Procedure 32(a)(7)(B), I certify that this brief is proportionately spaced and contains 1,523 words excluding parts of the document exempted by Rule 32(f).

Pursuant to Federal Rule of Appellate Procedure 32(a)(7)(B), I certify that this Brief of Appellant is proportionately spaced and contains

10,452 words excluding parts of the document exempted by Rule 32(f).

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CERTIFICATE OF SERVICE

I certify that on April 15, 2026, the Brief of Appellant was served on all parties or their counsel of record through the CM/ECF system.

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